



File No.: EXP202411257

RESOLUTION OF RIGHTS PROCEDURE

Considering the complaint registered on July 16, 2024, with this Agency and the procedural actions carried out as provided in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On July 16, 2024, a complaint was received by this Agency submitted by A.A.A. (hereinafter, the complainant) against CONSULTORIA LABORAL DE FORMACIÓN ONLINE, S.L. (hereinafter, the respondent) for not having duly addressed the right of access to their personal data. Furthermore, the complainant states that they did not give consent for the use of their data for commercial purposes. The complainant asserts that they were contacted by the respondent to offer them training courses. Subsequently, on January 18, 2024, the complainant sent an email to the respondent requesting access to their personal data.

The respondent sent two identical letters, dated July 11 and July 15, 2024, indicating the complainant's name and surname as the only data they had, and that "Such data has been obtained through a public website: Google, which can be accessed by anyone. The data will be renewed as long as it appears published on Google. The purpose of the data is purely commercial and has not been transferred to third parties in any case."

Along with the complaint, the following documents have been submitted:

- Copy of the email dated January 18, 2024, sent by the complainant to the respondent requesting access to their personal data.
- Copy of the two identical letters sent by the respondent, dated July 11 and July 15, 2024, informing the complainant of the data they possess.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent states that "(...) they have not directly received the requests for the exercise of rights from A.A.A. The requests were received by an external service subcontracted for the provision of digital marketing services. According to the confidentiality agreement signed with this external service, specifically in the clause that regulates the 'Assistance to the Data Controller in the Exercise of Rights', it is...

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It is clearly established that the data processor must immediately communicate, and in no case later than the next business day, any request for the exercise of rights received by email to the address info@consultorialaboral.es.

However, the external service did not comply with this obligation, as it did not notify Consultoría Laboral of the receipt of such requests, which constitutes a serious breach of contractual obligations and Articles 12 and 28.3 of the GDPR. It is noteworthy that the claimant's emails were received at addresses managed by the external service and not by Consultoría Laboral, and the commercial call was made from a phone number also managed by the external service, without direct intervention from Consultoría Laboral.

(...) Consultoría Laboral was unable to respond directly to the claimant's request for the exercise of rights because it was not aware of it until July 2024, when A.A.A. first contacted Consultoría Laboral directly to convey their request. From that moment and after receiving the present requirement from that Agency, Consultoría Laboral has been gathering all possible information regarding the incident in order to provide an appropriate response to the claimant. This effort includes a detailed review of the

actions of the external service and the evaluation of the contractual and legal breaches committed by it.

(...) As of the date of this document, no direct response has been given to the claimant due to the lack of notification by the external service of the original rights requests. Nevertheless, Consultoría Laboral will proceed to contact A.A.A. as soon as possible to resolve the situation and provide the relevant information, once the facts have been reviewed and the necessary measures have been taken to ensure regulatory compliance.

(...) Conclusion:

Consultoría Laboral de Formación Online S.L. has diligently fulfilled its obligations as the data controller, selecting and supervising the data processors in accordance with the requirements of the GDPR. The specific breaches pointed out in the complaint fall exclusively on the subcontracted external service, which did not comply with its contractual and legal obligations, exempting Consultoría Laboral from liability in these matters. Immediate corrective measures have been taken to ensure compliance with data protection regulations and to prevent similar future incidents."

The responding party, with this written response to the transfer procedure, did not provide any documentation that proves the hiring of the external service mentioned or the rest of its statements.

THIRD: The result of the transfer procedure indicated in the previous fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on September 12, 2024, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

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The aforementioned agreement granted the respondent the opportunity for a hearing, so that within a period of ten working days, they could present any arguments they deemed appropriate.

The notification of the Admission Agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on 13/09/2024, as noted in the acknowledgment of receipt in the file, without any response having been received by this Agency.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote awareness among data controllers and processors regarding their obligations, as well as to address complaints submitted by a data subject and investigate, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the

case that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the complainant with the appropriate response.

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The result of this forwarding did not allow for the understanding that the claims of the complainant had been satisfied. Consequently, on September 12, 2024, for the purposes provided for in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to state their reasons in case they do not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

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The communication addressed to the interested party regarding their request must be expressed in a

concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data." Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the controller provides remote access to the data, with the request being deemed fulfilled (although the interested party may request the information referred to in the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the origin of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

V

Conclusion

In this case, it has been established that the claiming party requested access to their personal data from the responding party, and that the latter replied, once the legally established period for doing so had elapsed, that it had their name and surname, and that "Such data has been obtained through a public website: Google, which can be accessed by anyone. The same will be renewed."

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while they are published on Google. The purpose of the data is purely commercial and has not been transferred to third parties in any case."

During the processing of this procedure, the responding party has indicated that it was unaware of the request from the claiming party because it was received "(...) by an external service subcontracted for the provision of digital marketing services. According to the confidentiality agreement signed with said external service, specifically in the clause that regulates the "Assistance to the Data Controller in the Exercise of Rights," it is clearly established that the data processor must immediately communicate, and in no case later than the next working day, any request for the exercise of rights received by email at the address info@consultorialaboral.es.

However, the external service did not comply with this obligation, as it did not notify Consultoría Laboral of the receipt of such requests, (...)"

The GDPR provides:

"Article 24. Responsibility of the data controller

1. Taking into account the nature, scope, context, and purposes of the processing as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the data controller

shall implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is in compliance with this Regulation. Such measures shall be reviewed and updated as necessary.

2. When provided in relation to processing activities, among the measures mentioned in paragraph 1, the implementation by the data controller of appropriate data protection policies shall be included.

3. (...)

Article 28. Processor

1. When processing is to be carried out on behalf of a data controller, the controller shall choose only a processor that offers sufficient guarantees to implement appropriate technical and organizational measures, so that the processing will be in compliance with the requirements of this Regulation and ensure the protection of the rights of the data subject.

2. The processor shall not engage another processor without the prior written authorization, specific or general, of the controller. In the latter case, the processor shall inform the controller of any intended changes concerning the addition or replacement of other processors, thus giving the controller the opportunity to object to such changes.

3. The processing by the processor shall be governed by a contract or other legal act under Union or Member State law, which binds the processor to the controller and establishes the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or legal act shall stipulate, in particular, that the processor:

a) shall process the personal data only on documented instructions from the controller, including with regard to transfers of personal data to a third country or an international organization, unless required to do so by Union or Member State law applicable to the processor; in such a case, the processor shall inform the controller of that legal requirement before the processing, unless that law prohibits such information on important grounds of public interest;

b) shall ensure that persons authorized to process personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality;

c) shall take all necessary measures in accordance with Article 32;

d) shall respect the conditions referred to in paragraphs 2 and 4 for engaging another processor;

e) shall assist the controller, taking into account the nature of the processing, by means of appropriate technical and organizational measures, insofar as this is possible, for the controller to comply with its obligation to respond to requests for exercising the rights of data subjects laid down in Chapter III;

f) shall assist the controller in ensuring compliance with the obligations laid down in Articles 32 to 36, taking into account the nature of the processing and the information available to the processor;

g) at the choice of the controller, shall delete or return all personal data after the end of the provision of processing services, and shall delete existing copies unless Union or Member State law requires storage of the personal data;

h) shall make available to the controller all information necessary to demonstrate compliance with the obligations laid down in this Article, as well as to allow and contribute to audits, including inspections, conducted by the controller or another auditor authorized by the controller.

In relation to the provisions of letter h) of the first paragraph, the processor shall immediately inform the controller if, in its opinion, an instruction infringes this Regulation or other Union or Member State data protection provisions.

4. (...)"

Furthermore, the LOPDGDD establishes:

"Article 28. General obligations of the controller and processor.

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1. The controllers and processors, taking into account the elements listed in Articles 24 and 25 of Regulation (EU) 2016/679, shall determine the appropriate technical and organizational measures that

must be applied in order to ensure and demonstrate that the processing is in compliance with the aforementioned regulation, with this organic law, its implementing regulations, and the applicable sectoral legislation. In particular, they shall assess whether a data protection impact assessment and the prior consultation referred to in Section 3 of Chapter IV of the aforementioned regulation are necessary.

2. For the adoption of the measures referred to in the previous paragraph, the controllers and processors shall take into account, in particular, the greater risks that could arise in the following cases:

a) (...)

b) When the processing could deprive the affected individuals of their rights and freedoms or could prevent them from exercising control over their personal data. (...)

Article 33. Processor.

1. Access by a processor to personal data that is necessary for the provision of a service to the controller shall not be considered a communication of data, provided that the provisions of Regulation (EU) 2016/679, this organic law, and its implementing regulations are complied with.

2. A person shall be considered a controller and not a processor if they establish relationships with the affected individuals in their own name and without it being established that they act on behalf of another, even if there is a contract or legal act with the content set forth in Article 28.3 of Regulation (EU) 2016/679. This provision shall not apply to processing assignments made within the framework of public sector procurement legislation. A person who, while acting as a processor, uses the data for their own purposes shall also be considered a controller.

3. The controller shall determine whether, upon the completion of the processor's services, the personal data must be destroyed, returned to the controller, or delivered, if applicable, to a new processor. The destruction of the data shall not proceed when there is a legal provision that requires its retention, in which case it must be returned to the controller, who shall ensure its retention as long as such obligation persists.

4. The processor may retain, duly blocked, the data as long as there may be liabilities arising from their relationship with the controller. (...)

Therefore, the fact that the responding party has contracted an external service for the management of personal rights does not exempt them from their responsibility for addressing such rights. If the contracted processor fails to fulfill the contracted functions, the responding party, in this case, must do everything possible to ensure that the right of access exercised by the claimant is duly addressed or denied with justification.

In any case, the responding party has not proven the contracting of the external service referred to in their response, nor the involvement of this supposed third entity in the facts.

The Guidelines 1/2022, on the rights of data subjects — Right of access in its version of March 28, 2023, from the European Data Protection Board, state that

“3. Under the GDPR, the right of access consists of three components, namely, the confirmation of whether or not personal data is being processed, access to such data, and information about the processing itself.

The data subject may also obtain a copy of the personal data processed, although this possibility is not an additional right of the data subject, but a means of facilitating access to the data. Thus, the right of access can be understood both as the possibility for the data subject to request the controller whether personal data concerning them is being processed, and as the possibility to access and verify such data. The controller shall provide the data subject, based on their request, with the information that falls within the scope of Article 15, paragraphs 1 and 2, of the GDPR.

(...)

2.1.1.

Definition of the content of the right of access

17. Article 15, paragraphs 1 and 2, contains the following three aspects: first, the confirmation of whether personal data of the requester is being processed; second, access to such data; and third, information about the processing. These can be considered three different components that together constitute the right of access.

2.1.1.1.

Confirmation of whether or not personal data is being processed

18. When submitting a request for access to personal data, the first thing that data subjects must know is whether the controller is processing data concerning them. Therefore, this information constitutes the first component of the right of access under Article 15, paragraph 1. When the controller does not process personal data concerning the data subject requesting access, the information that must be provided will be limited to confirming that personal data concerning them is not being processed. When the controller processes data concerning the requesting individual, they must confirm this to that individual. This confirmation may be communicated separately or included as part of the information about the personal data being processed (see below).

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2.2.1.2 Access to personal data subject to processing

19. Access to personal data is the second component of the right of access under Article 15, paragraph 1, and constitutes the core of this right. It refers to the concept of personal data as defined in Article 4, paragraph 1, of the GDPR. Apart from basic personal data, such as name and address, an unlimited variety of data may be included in this definition, provided that they fall within the material scope of the GDPR, particularly regarding the manner in which they are processed (Article 2 of the GDPR). Access to personal data means access to the actual personal data, not just a general overview of the data. Access to personal data is the second component of the right of access under Article 15, paragraph 1, and constitutes the core of this right. It refers to the concept of personal data as defined in Article 4, paragraph 1, of the GDPR. Apart from basic personal data, such as name and address, an unlimited variety of data may be included in this definition, provided that they fall within the material scope of the GDPR, particularly regarding the manner in which they are processed (Article 2 of the GDPR). By "access to personal data," it is understood to mean access to the personal data itself, not just a general description of the data or a mere reference to the categories of personal data processed by the data controller. Unless limits or restrictions are applied, data subjects will have the right to access all data processed concerning them, or parts of the data, depending on the scope of the request (see section 2.3.1). The obligation to provide access to the data does not depend on the type or source of such data. It applies in full even in cases where the requesting individual has initially provided the data to the data controller, as its purpose is to inform the data subject about the actual processing of such data by the data controller. The scope of personal data under Article 15 is explained in detail in sections 4.1 and 4.2.

(...)

2.3 General principles of the right of access

34. When data subjects submit a request for access to their data, in principle, the information referred to in Article 15 of the GDPR must always be provided in full. Consequently, when the data controller processes data concerning the data subject, it will provide all the information referred to in Article 15, paragraph 1, and, where applicable, the information referred to in paragraph 2 of the same article. The data controller must take appropriate measures to ensure that the information is complete, accurate, and up to date, and that it corresponds as closely as possible to the state of data processing at the time of receiving the request. When two or more data controllers process data jointly, the agreement of the joint controllers regarding their respective responsibilities concerning the exercise of the rights of the data subject, especially regarding responses to access requests, will not affect the rights of the data subjects against the data controller to whom they direct their request.

2.3.1 Completeness of the information

35. Data subjects have the right to obtain, with the exceptions mentioned below, the complete communication of all data concerning them (for more details on the scope, see section 4.2). Unless the data subject expressly requests otherwise, any request to exercise the right of access will be understood in general terms, encompassing all personal data concerning them. The possibility of

limiting access to part of the information may be considered in the following cases:

a) The data subject has explicitly limited the request to a subset. In order to avoid providing incomplete information, the data controller may only consider this limitation of the data subject's request if it can be certain that this interpretation reflects the data subject's wishes (for more details, see section 3.1.1, paragraph 51). In principle, the data subject will not have to repeat the request for the transmission of all data they are entitled to obtain.

b) (...)

3.1.1 Analysis of the content of the request

43. This issue can be evaluated more specifically by asking the following questions.

a) Does the request refer to personal data?

44. Under the GDPR, the scope of the request will only extend to personal data. Therefore, any request for information on other matters, particularly general information about the data controller, its business models, or its processing activities unrelated to personal data, should not be considered a request made under Article 15 of the GDPR. Furthermore, a request for information about anonymous data or data that does not concern the requesting individual or the person on whose behalf the authorized individual has submitted the request will not be included within the scope of the right of access. This issue will be analyzed in more detail in section 4.

45. Unlike anonymous data (which is not personal data), pseudonymized data, which could be attributed to a natural person through the

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The use of additional information constitutes personal data. Therefore, pseudonymized data that can be linked to a data subject (for example, when the data subject provides the corresponding identifier that allows their identification, or when the data controller can connect the data with the requesting person by their own means) must be considered included within the scope of the request.

(...)

e) Do the data subjects wish to access all or part of the information processed about them?

51. Furthermore, the data controller must assess whether the requests made by the requesting person refer to all or part of the information processed about them. Any limitation of the scope of a request to a specific provision of Article 15 of the GDPR, made by the data subjects, must be clear and unequivocal. For example, if the data subjects literally request "information about the data processed in relation to them," the data controller must assume that the data subjects intend to fully exercise their right under Article 15, paragraphs 1 and 2, of the GDPR. Such a request should not be interpreted as the data subjects wishing to receive only the categories of personal data being processed and waiving their right to receive the information listed in Article 15, paragraph 1, letters a) to h). This would be different, for example, when the data subjects wish to have access to the source or origin of the specified personal data or the specified retention period. In such a case, the data controller may limit their response to the specific information requested.

In this case, from the examination of the documentation provided by the parties during the instruction of this procedure, it has been established that the right of access to their personal data requested by the complaining party was not duly answered within the legally established timeframe. Furthermore, in the response sent by the responding party to the complaining party, they indicate that they only have their name and surname when it can be inferred from the complaint itself that they also have a phone number, in addition to not having specified all the sections included in the data protection regulations (source of the data, recipients, purposes, ...), so it cannot be considered that this right of access has been duly attended to. Consequently, it is appropriate to uphold the complaint presented.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint made by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge CONSULTORIA LABORAL DE FORMACIÓN ONLINE, S.L.

with NIF B88577663, to send to the complaining party, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the reasons why the request cannot be attended to, in accordance with what is established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to CONSULTORIA LABORAL DE FORMACIÓN ONLINE, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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